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THE CONSTITUTIONAL SUPREMACY OF ARTICLE 227: NAVIGATING STATUTORY APPEALS AND THE BASIC STRUCTURE DOCTRINE

When the Record Speaks, But the Judgment Does Not

Articles 226 and 227, Statutory Appeals, Perversity, Evidentiary Failure and the Constitutional Duty of Superintendence

There is a recurring procedural question in Indian litigation which is often stated too late. A litigant loses before a subordinate court or tribunal. A statutory first appeal is available. The first appeal is pursued and fails. The matter then reaches the stage of a second appeal, revision, or some other restricted statutory remedy. Only then does counsel begin to ask whether the original adjudication suffered from a defect which was never properly examined. By that stage, the character of the litigation may have changed completely.

The first appeal ordinarily permits a much wider examination of fact and law. Section 100 of the Code of Civil Procedure, 1908, does not. The second appeal is conditioned upon the existence of a substantial question of law. The first appellate court is ordinarily the final court on facts. The High Court in second appeal is not intended to conduct a third trial on facts. The consequence is important. The most important decision about Article 227 may have to be made at the first round of litigation, not after the first appeal has already failed.

That proposition does not mean that Article 227 is an alternative first appeal. Nor does it mean that every erroneous appreciation of evidence should be carried directly to the High Court under Article 227. The constitutional power is exceptional, discretionary and supervisory.

The proposition is narrower and more consequential:

Where the first adjudication contains a defect going beyond an ordinary error in appreciation of evidence—such as failure to consider material evidence, a finding based on no evidence, a conclusion incapable of being supported by the record, jurisdictional error, or a fundamental failure of lawful adjudication—the lawyer must identify the defect at the first stage and decide whether the statutory appellate route is genuinely capable of correcting it, or whether

constitutional superintendence has to be considered before the litigation enters the increasingly narrow confines of the appellate hierarchy. This is the real problem at the boundary between statutory appeals and Article 227.

I. THE CONSTITUTIONAL BEDROCK: ARTICLES 226 AND 227

Articles 226 and 227 are often mentioned together, but they do not perform the same constitutional function. Article 226 confers upon the High Courts a broad power to issue writs, directions and orders for enforcement of fundamental rights and "for any other purpose". Article 227, by contrast, confers upon every High Court the power of superintendence over courts and tribunals within its territorial jurisdiction. The distinction is not merely verbal. In *Radhey Shyam v. Chhabi Nath*, (2015) 5 SCC 423, a three-Judge Bench reaffirmed that judicial orders of civil courts are not amenable to writ jurisdiction under Article 226 and emphasized that Article 227 is distinct from Article 226. The Court also stressed the exceptional and disciplined character of supervisory intervention. The foundational authority remains *Waryam Singh v. Amarnath*, AIR 1954 SC 215, where the Supreme Court explained the constitutional power of superintendence and its relationship with the administration of justice by subordinate courts. Article 227 therefore cannot properly be described as a disguised appeal. An appellate court ordinarily asks: Was the decision correct? A supervisory court asks a different question: Has the subordinate court or tribunal acted within the bounds of lawful adjudication? That distinction becomes decisive when the complaint concerns not merely the conclusion but the integrity of the adjudicatory process by which the conclusion was reached.

II. ARTICLE 227 AND THE BASIC STRUCTURE

The constitutional position becomes still more significant after *L. Chandra Kumar v. Union of India*, (1997) 3 SCC 261. The seven-Judge Bench treated judicial review vested in the constitutional courts as part of the basic structure of the Constitution. The constitutional scheme cannot therefore be understood as permitting ordinary legislation to extinguish or effectively eliminate the High Court's constitutional role in judicial review and supervision. But this proposition requires precision. It does not mean that every statutory appeal can be bypassed because Article 227 is constitutionally superior to legislation. It means that the existence of a statutory adjudicatory structure cannot itself destroy the constitutional jurisdiction of the High Court. The constitutional jurisdiction remains; its exercise is governed by constitutional principle, judicial discipline and the nature of the defect complained of. That distinction is the foundation of the entire debate.

III. THE FIRST QUESTION IS NOT "IS THERE AN APPEAL?"

This is where legal strategy frequently becomes mechanical. A judgment is passed. Counsel sees a right of appeal. The immediate conclusion is: "We will appeal." Sometimes that is correct, but often it is incomplete. The proper first question is: What exactly has gone wrong in the first adjudication? That question must be answered before choosing the route. There is a substantial difference between: a court considering all relevant evidence and reaching an inference which counsel believes to be wrong; a court considering evidence but assigning it insufficient weight; a court overlooking a material document; a court excluding relevant evidence on an erroneous legal premise; a court recording a finding which has no evidentiary foundation; a court reaching a conclusion which is demonstrably inconsistent with material evidence on the record; a court

proceeding without jurisdiction; a court failing to exercise jurisdiction vested in it; and a court deciding the matter in violation of fundamental principles of judicial procedure. All of these may be described loosely as "errors". They are not, however, necessarily the same legal error.

IV. FIRST APPEAL: THE BROAD STATUTORY CORRECTIVE

Section 96 CPC ordinarily gives the first appellate court a wide field. The significance of the first appeal was emphasized in *Santosh Hazari v. Purushottam Tiwari*, (2001) 3 SCC 179. The Supreme Court described the first appeal as a valuable right and held that, unless restricted by law, the whole case is open for rehearing on questions of fact and law. The first appellate court is ordinarily the final court on facts. This has an important consequence. If the complaint is simply: "The trial court believed the wrong witness" or: "The trial court should have drawn a different inference from the evidence," the first appeal is ordinarily the natural statutory remedy. But the analysis changes if the complaint is: "The trial court never considered the material evidence at all." That is not merely a complaint about the weight assigned to evidence. Nor is: "The finding is based upon a document whose contents, read as a whole, cannot support the proposition for which it has been used." Nor: "The court has recorded a factual conclusion which is incapable of rational support from the evidence actually on record." The lawyer must therefore distinguish error in appreciation from failure of adjudication. That distinction is central.

V. THE FIRST APPELLATE COURT ITSELF MUST ADJUDICATE

The existence of a first appeal does not mean that the first appellate court may merely endorse the trial court. Order XLI Rule 31 CPC requires the appellate judgment to state the points for determination, the decision thereon, the reasons for the decision and, where appropriate, the relief. The Supreme Court has repeatedly insisted upon this duty. In *B.V. Nagesh v. H.V. Sreenivasa Murthy*, (2010) 13 SCC 530, the Court reiterated that the first appeal is a valuable right and that the appellate judgment must reflect conscious application of mind and reasons on the issues and contentions requiring decision. The significance is obvious. If the trial court fails to consider material evidence, and the first appellate court simply reproduces the trial court's reasoning without independently addressing the evidence, the defect may not have been cured merely because an appeal existed. The existence of an appellate remedy and the effective exercise of appellate jurisdiction are not identical propositions.

VI. "WHEN THE RECORD SPEAKS, BUT THE JUDGMENT DOES NOT"

This is the point at which evidentiary failure becomes constitutionally interesting. Courts are not required to mention every piece of evidence. A judgment cannot be attacked merely because every argument was not individually reproduced. But there is a difference between brevity and omission.

Where evidence is material, directly relevant, legally admissible, actually on the record, and capable of materially affecting the determination, and the adjudicator completely fails to consider it, the resulting finding may acquire a different legal character.

Can a finding be treated as a legitimate judicial finding when the material evidentiary foundation bearing directly upon that finding has effectively disappeared from the reasoning

process? This is where the doctrine of perversity enters. Perversity is not simply a stronger word for “wrong”. A finding may be wrong and yet perfectly legitimate as a finding of fact. A perverse finding, in the legal sense, is one which suffers from a fundamental defect in its evidentiary or logical foundation. The Supreme Court has recognized that non-consideration of relevant evidence and an erroneous approach to the evidence can, in appropriate circumstances, justify interference even in second appeal. *Dinesh Kumar v. Yusuf Ali*, (2010) 12 SCC 740, is particularly important on this point.

VII. THE DIFFICULT QUESTION: ARTICLE 227 OR STATUTORY APPEAL?

This is where the lawyer must resist two opposite mistakes. The first mistake: “There is a statutory appeal, so Article 227 can never be considered.” That is too absolute. The rule concerning alternative remedies is ordinarily one of judicial restraint. It does not erase constitutional jurisdiction. The Supreme Court in *Radha Krishan Industries v. State of Himachal Pradesh*, (2021) 6 SCC 771, reiterated the recognized exceptions to the rule of alternate remedy, including cases involving violation of natural justice, failure to act according to law and certain fundamental procedural defects.

The second mistake: “The evidence has been wrongly appreciated, therefore Article 227 should be filed.” That is equally wrong. Article 227 cannot become an alternative appeal on facts. *Shalini Shyam Shetty v. Rajendra Shankar Patil*, (2010) 8 SCC 329, emphasized the exceptional and disciplined nature of the power. The jurisdiction is intended to maintain the proper functioning of subordinate courts and tribunals and is not to be exercised merely to correct ordinary errors. The correct approach therefore lies between these two extremes.

VIII. THE LAWYER'S REAL QUESTION: “IS THE FIRST ADJUDICATION FIT FOR ORDINARY APPEAL?”

This question deserves to become a central proposition of Indian appellate practice. Suppose the first adjudication contains a material evidentiary defect. The lawyer should ask:

First: Can the first appellate court fully examine and correct the defect? If yes, the statutory appeal ordinarily remains the appropriate route.

Second: Is the complaint really about appreciation of evidence, or about the legality and integrity of the finding? That distinction matters.

Third: Does the defect amount to a jurisdictional or fundamental procedural failure? If so, the constitutional remedy may require consideration.

Fourth: Will postponing the challenge until Section 100 materially narrow the ability of the court to correct the original defect? This is the question which is too often asked only after two rounds of litigation.

IX. SECTION 100: THE NARROWING DOOR

The second appeal under Section 100 CPC is deliberately restricted. The High Court does not sit as another court of facts. In *Hero Vinoth v. Seshammal*, (2006) 5 SCC 545, the Supreme Court explained the meaning of “substantial question of law” and recognized that a question may become substantial where a court below has acted contrary to settled legal principles or where the decision is legally vitiated.

The judgment also distinguishes factual inference from the legal effect or construction of a document. This is where evidentiary errors become complicated. A submission that “the evidence favours the appellant” is ordinarily a factual submission. A submission that “the finding is legally unsustainable because material evidence was ignored and the conclusion has no rational evidentiary foundation” may present a substantially different question. The difference determines whether the matter remains an ordinary dispute about facts or becomes a question concerning the legal validity of the finding itself.

X. WHY THE FIRST ROUND MATTERS

The statutory structure therefore creates a practical paradox. The first appellate court has the widest capacity to examine the record. The second appellate court has the narrowest. Therefore, if a serious defect in the original adjudication exists, counsel must consider its character before allowing the case to travel into the second-appellate corridor.

This does not mean that Article 227 should replace first appeal. It means the lawyer should not wait until Section 100 has become the only remaining statutory avenue before asking what was wrong with the first adjudication. By then, the case may have reached a practical point of no return. The law has not literally extinguished every remedy, but the available remedy may have become far less capable of correcting the original problem. That distinction between formal availability and practical efficacy deserves much greater attention.

XI. ARTICLE 227 IS NOT A SHORTCUT; IT IS A CONSTITUTIONAL SAFEGUARD

There is an important qualification. Efficiency cannot itself create Article 227 jurisdiction. The argument cannot be: “Article 227 is quicker and cheaper, therefore use it.” That would invert the constitutional analysis. The correct proposition is: The nature of the defect determines whether constitutional supervision is legitimately attracted; efficiency is a consequence of choosing the correct remedy at the correct stage, not the source of jurisdiction. This is particularly important because Article 227 must not be allowed to become an instrument for evading statutory appellate limitations. The constitutional court must preserve both values: correct adjudication and institutional finality.

XII. THE SPECIAL PROBLEM OF TRIBUNALS

The constitutional analysis cannot be reduced to a single formula. The Supreme Court’s decision in *Ibrat Faizan v. Omaxe Buildhome Pvt. Ltd.*, Civil Appeal No. 3072 of 2022, decided 13 May 2022, is instructive. The Court held that an Article 227 petition was maintainable against an NCDRC order passed in an appeal under Section 58 of the Consumer Protection Act, 2019, while simultaneously emphasizing the limited parameters within which Article 227 had to be exercised. Constitutional superintendence is not extinguished merely because a specialised statutory structure exists; and maintainability does not convert Article 227 into an appellate jurisdiction. That balance should govern the entire discussion.

XIII. THE PRINCIPLE

The existence of a statutory appeal answers the question whether an appellate remedy exists. It does not, by itself, answer the prior and more fundamental question of whether the adjudication

is of a character that can appropriately be left to that appellate process. That is why the first round matters.

The lawyer must identify: the nature of the adjudication; the nature of the error; the evidentiary foundation; the jurisdiction exercised; the procedural fairness of the proceeding; the scope of the statutory appeal; the scope of the second appeal; and the point at which the statutory remedy ceases to be capable of effectively correcting the original defect. Only then can the constitutional and statutory routes be intelligently separated.

XIV. CONCLUSION: THE STATUTORY APPEAL IS THE STAIRCASE; ARTICLE 227 IS THE GUARDRAIL

The statutory appellate hierarchy is indispensable. It cannot be bypassed merely because a litigant believes that the subordinate court has made an error. But constitutional superintendence is equally indispensable. It exists to ensure that courts and tribunals remain within the boundaries of lawful adjudication. The difficult cases lie between these two principles. A wrong decision may be an ordinary appellate problem. A perverse finding may present a question of law. A failure to consider material evidence may, depending upon its nature and consequences, become more than an ordinary factual disagreement. A jurisdictional failure may call for constitutional supervision. A fundamental procedural failure may render the ordinary remedy inadequate.

And once the matter has travelled through the first appeal into Section 100, the statutory capacity to correct factual adjudication becomes sharply narrower. The real lesson is: At the first round of litigation, identify the character of the defect and choose the remedy which is legally capable of correcting that defect before the litigation enters a stage at which the law itself sharply restricts the scope of correction. The statutory appeal is ordinarily the staircase through which an erroneous decision is corrected. Article 227 is the constitutional guardrail which ensures that the adjudicatory machinery does not travel beyond the boundaries of law. And where the record speaks but the judgment does not, the lawyer's first responsibility is to determine what the silence means in law.

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